

24VECV01456 24VECV01456

County: los-angeles

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Tentative Ruling

Hernandez v. FCA US, Case no. 24VECV01456

Hearing date September 10, 2026

Plaintiff

Hernandez's Motion to Compel Compliance

Plaintiff

Hernandez, in pro se following counsel's motion to be relieved, sues defendant FCA US, LLC, alleging violations of the Song-Beverly Act. Plaintiff moves to compel compliance with defendant's alleged promise to serve further responses to RFPs, set one, and for monetary sanctions. Defendant opposes.

If

a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance. Code Civ. Proc. §2031.320.

Plaintiff

served RFPs, set one, on defendant 6/5/25. Decl. Rucker, para. 4, exh. 1. Defendant served initial responses on 12/11/25, wherein defendant promised further production would occur as to requests nos. 1-2, 4-8, 14, 87-95, 97-98, 100 and 104. Id. at para. 5, exh. 2. No production occurred as of the 4/6/26 filing of this motion. Id. at para. 6.

Defendant

argues the parties were operating under “an informal arrangement for all cases between [defendant] and [plaintiff’s former counsel.]” Decl. Hugret, para. 4. Defendant represents this arrangement allowed plaintiff’s counsel to serve discovery requests, while defendant received an open-ended extension to respond. Id. at para. 5. Defendant asserts plaintiff, once in pro se, at no point demanded responses prior to filing this motion. Id. at para. 5. Defendant served responses on 5/8/26. Id. at para. 6. No evidence of such request by plaintiff, in pro se, was provided.

Plaintiff’s

counsel’s motion to withdraw on the basis of inability to contact plaintiff was granted. See decl., 8/4/26 Min. Order. No reply has been filed contesting defendant’s characterization of the agreement between defendant and plaintiff’s former counsel. There is no basis to find this motion was necessary, nor evidence that meet-and-confer efforts occurred prior to filing. No sanctions will issue. As responses have been served, the request for further responses is MOOT.